

## 25PSCV01998 25PSCV01998

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-02

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Case Number: 25PSCV01998 Hearing Date: September 2, 2026 Dept: 6

Plaintiff

Melissa Leos' Request for Entry of Default Judgment

Defendant: Eminent Marketing Group

### TENTATIVE RULING

Plaintiff's request for entry of  
default judgment is DENIED without prejudice.

### BACKGROUND

This is  
an employment dispute. On May 30, 2025, plaintiff Melissa Leos (Plaintiff)  
filed this action against defendant Eminent Marketing Group (Defendant) and  
Does 1 to 50, alleging causes of action for discrimination, harassment, failure  
to accommodate, failure to engage in interactive process, age discrimination,  
failure to prevent discrimination, retaliation, wrongful termination, failure  
to pay overtime & wages, failure to pay all compensation at termination,  
failure to provide employment records, and violation of Business &  
Professions Code § 17200 et seq.

On  
November 25, 2025, the court clerk entered default against Defendant.

On  
August 13, 2026, Plaintiff requested entry of default judgment.

## LEGAL

### STANDARD

#### Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

### ANALYSIS

#### Plaintiff

seeks default judgment against Defendant in the total amount of \$287,817.00, including \$287,382.00 in damages and \$435.00 in costs. The Court finds Plaintiff's default judgment request resolves some of the issues the Court noted in its prior ruling, but the Court still needs evidence to support some of the amounts requested. (See Order Re: Court Ruling (5/13/26).) First, regarding backpay wages, the Court understands Defendant failed to comply with Plaintiff's pre-suit demand for her payroll and personnel file, so the Plaintiff's declaration will suffice in that regard. (Compl., ¶ 13; see *Morales v. Factor Surfaces LLC* (2021) 70 Cal.App.5th 367, 371-372 (*Morales*) [employee's regular rate of pay calculated by dividing weekly paycheck by 40 based on employee estimates and employer's failure to provide records demonstrating portion of weekly paycheck].) However, Plaintiff's declaration only mentions 40 hours in a conclusory statement without describing Plaintiff's schedule, which also conflicts with the single paystub provided evidencing a 14.00 hour work period. (Leos Decl., ¶ 17, Ex. A.) The Court needs some more details about Plaintiff's work schedule before it can award damages based on the claimed 40-hour workweek, such as Plaintiff's regular start and end time or regular days of the week. (See *Morales*, *supra*, 70 Cal.App.5th at p. 372 ["[A]n employee has carried out his burden if he proves that he has in fact performed work for which he was improperly compensated and if he produces

sufficient evidence to show the amount and extent of that work as a matter of just and reasonable inference”].)

Second, Plaintiff’s

front-pay calculations also need similar additional information regarding Plaintiff’s claimed 40-hour workweek. (See *Atkins v. City of Los Angeles* (2017) 8 Cal.App.5th 696, 738, 742 [future economic losses must be “reasonably certain,” not “speculative, remote, ... or merely possible,” and the plaintiff bears the initial burden of providing “the essential data necessary to calculate a reasonably certain front pay award”].)

Third,

while Plaintiff has provided evidence of emotional distress, it is unclear how Plaintiff calculated her noneconomic damages based on that emotional distress. (See, e.g., *Briley v. City of West Covina* (2021) 66 Cal.App.5th 119, 141-142 [\$2 million award reversed where plaintiff called termination “pretty devastating” but “offered little detail” and described experiencing “the gamut of emotions anyone would experience upon... termination”]; compare *Sasco Elec. v. Fair Emp. & Hous. Com.* (2009) 176 Cal.App.4th 532, 540 [\$85,000.00 award upheld on testimony of daily crying, inability to leave the house, nausea, headaches, insomnia, and severe depression for at least two months].) Plaintiff’s noneconomic damages of \$162,876.00 seems high. On resubmission, Plaintiff can provide additional evidence to support this amount or revise the amount requested with such additional evidence. Otherwise, the Court will significantly reduce this amount. (See Code Civ. Proc., § 585 [court awards default judgment as appears by the evidence to be just”]; *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 287.)

Fourth

and finally, Plaintiff’s rest-break premiums are overstated. Missed-break premiums are one additional hour of pay per workday. (*Naranjo v. Spectrum Sec. Servs., Inc.* (2022) 13 Cal.5th 93, 120.) Plaintiff’s \$510.00 is calculated as 10 rest breaks per week times 3 weeks. (Leos Decl., ¶ 19.) Plaintiff will need to recalculate this amount.

## CONCLUSION

Based on the foregoing, Plaintiff’s request for entry of default judgment is DENIED without prejudice.